

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF DELAWARE

QORVO, INC.

Plaintiff,

v.

AKOUSTIS TECHNOLOGIES, INC. and
AKOUSTIS, INC.

Defendants.

C.A. No. 21-1417 (JPM)

JURY TRIAL DEMANDED

**OMNIBUS DECLARATION OF DAVID S. ELKINS IN SUPPORT OF
THE AKOUSTIS DEFENDANTS' OPENING BRIEFS IN SUPPORT OF
(1) THEIR RENEWED MOTION FOR JUDGMENT AS A MATTER OF LAW,
AND (2) THEIR MOTION FOR A NEW TRIAL ON DAMAGES,
OR IN THE ALTERNATIVE REMITTITUR**

I, DAVID S. ELKINS, declare as follows:

1. I am a Partner of the law firm of Squire Patton Boggs (US) LLP and am one of the counsel of record for defendants Akoustis Technologies, Inc. and Akoustis, Inc. (collectively, "Akoustis") in this matter. I make this declaration on my own personal knowledge or, where indicated, on information and belief formed after reasonable inquiry under the circumstances. If called to testify under oath in court, I could and would testify competently to the facts stated below.

2. Attached as **Exhibit A** is a true and correct copy of excerpts from the Trial Transcripts in this action dated May 10, 2024, May 13, 2024, and May 15, 2024.

3. Attached as **Exhibit B** is a true and correct copy of *Sedona Conference Commentary on Monetary Remedies in Trade Secrets Litigation*, 24 Sedona Conf. J. at 384-87 (2023).

4. Attached as **Exhibit C** is a true and correct copy of RESTATEMENT (THIRD) OF UNFAIR COMPETITION § 45 Monetary Relief: Appropriation of Trade Secrets.

5. Attached as **Exhibit D** is a true and correct copy of an email and attachment from counsel to Akoustis (Ronald P. Golden III) to the Court, counsel for Qorvo (Roy Jung, Elodie Currier, Jack Blumenfeld, Anthony David Raucci, Eric Gill, Jennifer Klein Ayers, Jeremy A. Tigan, Jonathan DeFosse, Robert Master, Zachary Alper, and Timothy Cremen), and Akoustis' other counsel (David S. Elkins, Ronald S. Lemieux, Steve Brauerman, Victoria Smith, Matthew A. Stanford, Xiaomei Cai, and Rachael A. Harris), dated Monday, May 6, 2024 at 10:11 AM with a redline of a Special Verdict Form dated May 6, 2024 attached. The redline changes reflected in the attachment to the email are those proposed by Akoustis.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on June 17, 2024.

/s/ David S. Elkins

David S. Elkins